

CITY OF CHEYENNE – CITY COUNCIL AGENDA ITEM SHEET

DATE OF COUNCIL MEETING: January 28, 2013

TYPE OF DOCUMENT: (☐ ORDINANCE) (☐ RESOLUTION) (☒ PRELIMINARY PLAT/
PRELIM PUD ZONE CHANGE) (☐ LEASE/CONTRACT) (☐ CHANGEORDER/CONTRACT
MODIFICATION) (☐ CONSIDER BID) (☐ APPLICATIONS/LICENSES/PERMITS)
(☐ APPOINTMENTS) (☐ ANNOUNCEMENTS/REPORTS/MOTIONS) (☐ OTHER)

SPONSOR: (ORDINANCE OR RESOLUTION) N/A

EXACT WORDING FOR AGENDA: Preliminary Plat for a tract of land situated in a portion the East Half of the East Half (E½E½) of Section 20, T.14N., R.66W., 6th P.M., Laramie County, Wyoming (Annexation in process) (located north of and adjacent to the rear of the existing WalMart Store).

(1% Sales Tax Funding/Years)	N/A
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(Other Funding _____)

CONTACT PERSON: Jim Flesher PHONE: 637-6286 DEPT: Development Office

OTHER CITY DEPTS AFFECTED: N/A

OTHER GOV'T AGENCIES AFFECTED: N/A

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: N/A

CONTRACT TERM: N/A STARTING DATE: N/A

	YES	NO	N/A
Is funding budgeted?	☐	☐	☒
Were Bids called for?	☐	☐	☒
Affected parties notified of Council procedure and dates?	☒	☐	☐
Has bond, insurance or other security been arranged?	☐	☐	☒
Have legal descriptions been checked?	☒	☐	☐

Agenda Item approved / reviewed by :

Risk Mgr () City Attorney () Dept. Head (X)

General Comments: The Cheyenne Planning Commission recommended denial of the above described Preliminary Plat by a unanimous vote of 6 to 0 at their meeting on January 7, 2013. See the attached Staff Report for more definitive information.

Submitted by: Brandon Cammarata Title: Planning & Dev Dir. Date: January 23, 2013

UPON PASSAGE OF THE AGENDA ITEM, COPIES SHOULD BE SENT TO:

City Clerk's Office Engineering Tech Branch

Development Office

STAFF REPORT

Scenic Subdivision Summation

Preliminary Plat Process

CASE NUMBER: Pre.Plat-12-00009 **FILE CODE:** SCES-P
PREPARED BY: Brandon Cammarata
MEETING January 7, 2013 – Planning Commission
DATES: January 28, 2013 – City Council

Required documents submittal:

All required documents have been submitted and reviewed by staff.

- Complete Application, Preliminary Plat Map, Drainage Worksheet, Transportation Worksheet, Transportation Network Plan, Open Space Worksheet, Environmental Impact Assessment

RECOMMENDATION: The Planning and Development office recommends the preliminary plat be denied due to its noncompliance with the review criteria set forth in Article 2, Section 2.1.1.d of the Cheyenne Unified Development Code in order that the preliminary plat may be resubmitted along with a new annexation petition for the larger area under the applicant's ownership east of Converse. If denied by the Planning Commission, the applicant may appeal the decision to the City Council within 15 days of the Planning Commission decision.

STAFF REPORT UPDATE (01/07/13): At its regular meeting Monday, January 7, 2013, the City of Cheyenne Planning Commission recommended denial the preliminary plat for Scenic Subdivision, by a unanimous vote of 6-0 (chair did not vote). The primary reasons cited were that the transportation network plan deviates from the master transportation plan and concerns relating to the sufficiency of the open space, lack of connection to the existing commercial centers to the south. Also, noted the drainage pond serving areas yet to be platted.

STAFF REPORT UPDATE (01/18/13): The agenda for the applicant submitted a written request to proceed to the governing body with a recommendation for denial. The request and attachments are described as Addendum 1. Staff has not reviewed the items in addendum #1 as of the date of this council agenda submittal (1/23/13).

New enclosures: Addendum #1(1/23/13)

STAFF REPORT

Scenic Subdivision

Preliminary Plat Process

CASE NUMBER: Pre.Plat-12-00009 FILE CODE: SCES-P

PREPARED BY: Brandon Cammarata

PRE-APPLICATION MEETINGS: None

SUBMITTED: December 3, 2012

OWNER: Frank M Cole ET AL 634-4577
1983 Chesire Drive
Cheyenne, WY 82001

AGENT/ Steil Surveying Services c/o Casey Palma 634-7273

APPLICANT: PO Box 2073
Cheyenne, WY 82003

PROJECT: Scenic Subdivision WORK DESCRIPTION: Preliminary Plat

LOCATION:

1) Legal Description: A tract of land situated in a portion the East Half of the East Half (E½E½) of Section 20, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (annexation in process)

2) General Location: North of and adjacent to the rear of the existing WalMart Store

3) Address: SCSD

SIZE: Total Site: 20.87 acres
Right-of-way: 1.58 acres
Other: 3.52 acres detention pond

CURRENT ZONING: A-1 Agriculture (County)

PROPOSED ZONING: HR-2, High-Density Residential (“Developing”) (zoning in process)

EXISTING LAND USE: Vacant land

PROPOSED LAND USE: Residential apartment complex

EXPEDITED REVIEW: Not requested

SURROUNDING LAND USES:

DIRECTION	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Vacant	A-1	County
South	Large scale and Warehouse retail	MR-1, P	City
East	Single-family homes,	MR-1, P	City
West	Vacant	A-1	County

PROJECT DATA:

The specific project being pursued by Scenic Development (Scenic) is a 300 plus multi-family complex. The platting for Scenic Development is running concurrent with an annexation and zone change from Agricultural zoning to HR-2 High Density Residential. A conditional use approval by the Board of Adjustment will also be required. Conditional use approvals are required for some higher intensity uses, like large apartment complexes, that will have a greater impact on surrounding neighborhoods. The plat also includes three plus acres of stormwater detention pond at the southwest corner.

Frank Cole ET AL (Cole) is the landowner of this and surrounding undeveloped land including over 300 acres west of Converse Avenue which is referred to in this report as "Section 20". Mr. Cole also owns undeveloped land east of Converse in excess of 50 acres and is pursuing another plat concurrently across Converse Avenue to the east known as the Bluff 9th Filing as well as the development of stormwater facilities in the County.

The Scenic Development group has met with the City numerous times to discuss preliminary site layouts and expectations relating to the plat application. In general, staff has expressed that the project could fit in the proposed location provided the application is consistent with City policies and regulations. Concerns relating to the transportation network were identified during the annexation which was submitted in September. It is the understanding of staff that the transportation network plan submitted with the application and related documentation proposing unique transportation and open space systems is at the request of the landowner. An invitation has been extended to the land owner to discuss these matters but no discussion has occurred.

Please note that an infrastructure reimbursement may be due for water and sanitary sewer infrastructure installed by previous developers. Please see additional information in the Board of Public Utilities comments at the end of this report.

PLAT ANALYSIS SUMMARY

Based on the review of City policies and standards discussed in this report, staff recommends denial of this plat and that a plat covering the remainder of the landowners holding in the area be submitted in order to address the numerous issues and questions associated with this proposal.

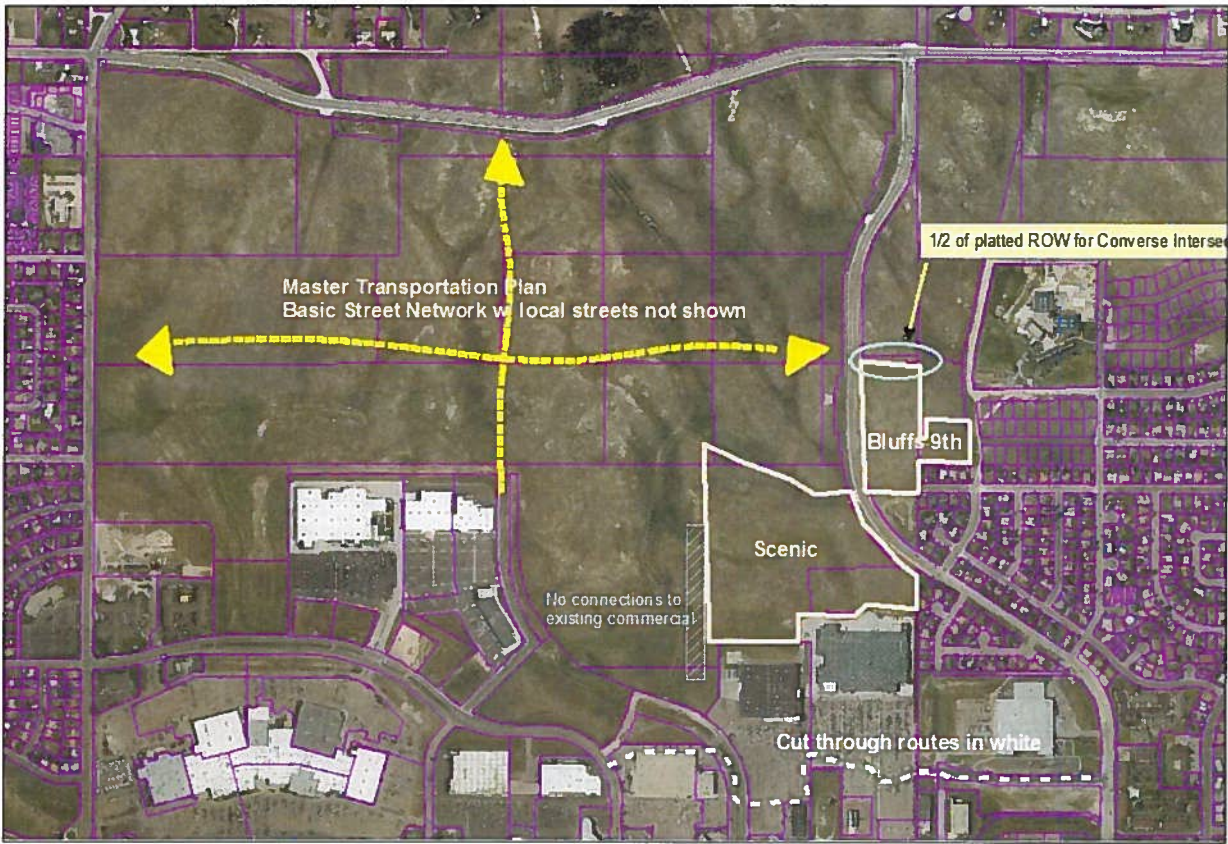
This application proposes an incremental addition to the community, meaning a relatively tiny piece of land is being developed at the edge of the City with the expectation that land beyond this development will also be developed. Incremental development patterns are common in Cheyenne and regulations and policies accommodate this reality of growth in Cheyenne. In order to accommodate incremental growth patterns multiple factors are balanced in order to provide some assurance that additions to the City will be functional and that future development additions can be built off of the addition. These include working within the framework of certain assumptions and expectations established by the community through planning processes and adopted regulations.

Another approach seen in Cheyenne is a more comprehensive approach to land development where larger areas of land are platted. In most cases this approach provides a little more flexibility because multiple factors can be evaluated concurrently over a larger area which often presents more options in terms of meeting the purposes and intents of the Community's policies and regulations. Recent examples of larger developments in the City are Saddler Ridge and The Pointe. This comprehensive approach is an option in Section 20 since most of the undeveloped area is owned by a single ownership group and the landowner clearly has expressed a desire to pursue transportations network and open space systems that would appear to have substantial impacts on surrounding landowners and previous and future investment made by both the City and private development.

For the Scenic proposal there would appear to be two approaches. The first would be for Scenic to pursue development akin to what is currently proposed, with the caveat that the application also be consistent with City policies and standards including a transportation network plan which is consistent with the Master Transportation Plan and PlanCheyenne. This provides the governing body a level of assurance that this and future development

will be functional and generally provide for the health safety and welfare of all the citizens of Cheyenne. The second approach would be for the landowner to plat the broader area of Section 20 and adjacent holdings and this would appear to be only alternative at this point in time given the landowner is not willing to address any of the broader concerns being raised by this application. This broader approach is usually preferred in any case since a broader approach usually offers more options.

A brief overview of the concerns identified in this review is provided here in summary. The application includes numerous discussions of circumstance beyond the plat boundary in the undeveloped areas of Section 20 which change basic premises for development in this area including (1) not continuing Rue Terre to Storey Blvd (2) underutilizing and degrading Converse Avenue by not having any viable four way intersections to connect to the neighborhoods east of Converse, (note: the Bluffs 9th Filing in conjunction with this application effectively eliminates the opportunity for a four way intersection on Converse); (3) no open space areas (4) no local street network (5) changes in land use assumptions for the area (the traffic study is now describing lower density residential between this site and Cheyenne Marketplace which is where Kohl's and other stores are located). A landowner of undeveloped land also within Section 20 has submitted written objection to the submittal and is attached to this report.



General Map

110304

PLAT ANALYSIS

Review of a preliminary plat is organized by analysis of the review criteria described in the Preliminary Plat Review Criteria outlined in Article 2, Section 2.1.2d. The purpose of these review criteria is to provide a consistent review and discussion for preliminary plat applications.

1 ||Policies | Physical Patterns | Comprehensive Plan - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

PlanCheyenne discusses a transition of uses moving north from the Dell Range Commercial Centers. This is described as a mix of uses with commercial emphasis that transitions into residential neighborhoods to the north. The Plan also lays out a basic road network with a collector type street bisecting Section 20 east and west that will connect to the east with a four-way intersection on Converse Avenue. The Plan also describes Rue Terre continuing to the North to Storey Boulevard. The expectation of Rue Terre connecting to Storey Blvd. has guided how that street is built and the amount of investment in that street. With these collectors, the plan also describes the necessity of a local street network to support the collector streets allowing streets a greater opportunity to function well and be usable for a wide variety of uses.

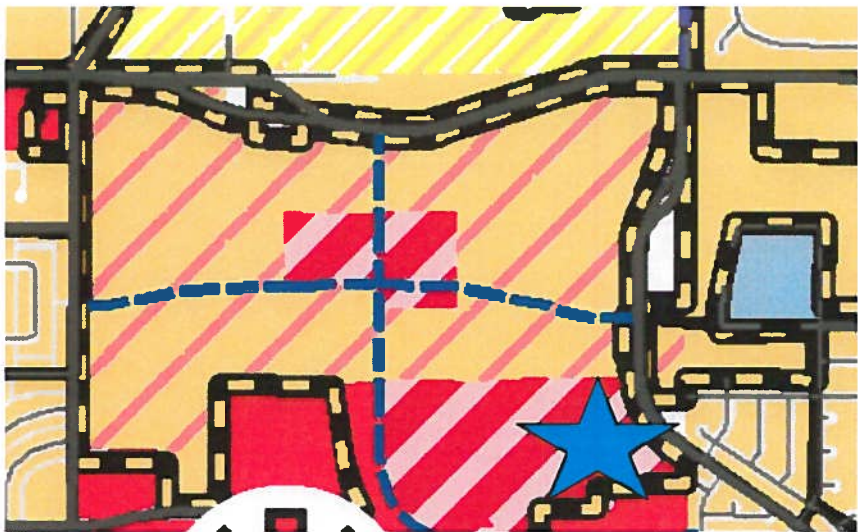


Figure 1 - PlanCheyenne, Star is project area

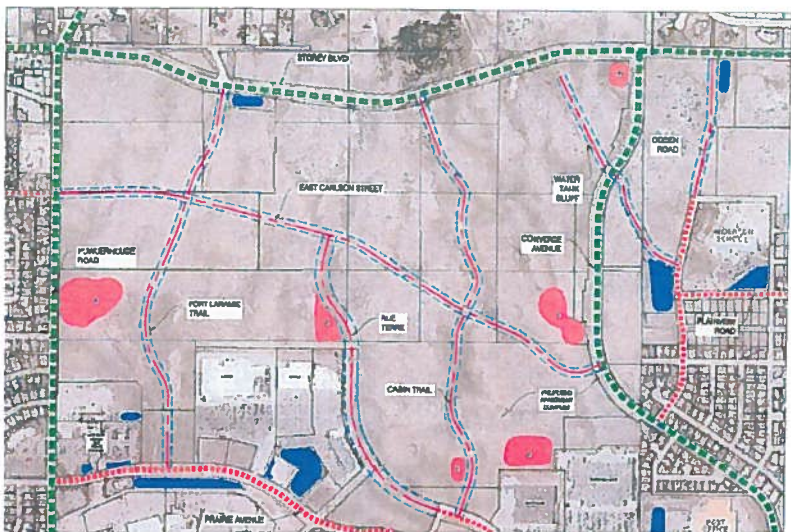


Figure 2 - Application, Transportation Network Plan

In general this application proposes significant deviations from the development policies and physical patterns identified in the comprehensive plan. Amending PlanCheyenne in conjunction with a plat of the entire landholding in Section 20 and those holdings east of Converse Avenue should be pursued to fully evaluate the proposal. This application includes a transportation network plan (4.3.2) for Section 20 that included significant deviations with regards to the alignments of primary roads. The transportation network plan also suggests very few local roads. The application includes analysis of drainage and land use beyond the plat boundaries which do not propose parks or open space and proposes significant changes in land use patterns.

2 || Existing & Future Development - *The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities.*

The framework of streets, stormwater water systems and open space systems established with platting is expected to be the framework of the community for hundreds of years. Once street and drainage network and open spaces are set they do not change without substantial public investment and will impact the residents and taxpayer of Cheyenne long after the development is complete.

Policies and regulations in Cheyenne recognize that often time development does occur incrementally and the policies and regulations accommodate this sort of development. The community's regulations and community plans establish a basic framework for incremental development to occur in a way that balances the needs of a current developer, future adjacent developers, adjacent existing development and the taxpayers of Cheyenne who will maintain the civic assets developed such as streets, and dedicated open space and stormwater facilities. The regulations and polies provide basic safeguards for the community assuring some level of functionality as land develops incrementally over time

As an alternative to the incremental approach landowners of larger areas usually choose a more comprehensive approach, which often lends itself to more flexibility to maximize the opportunities and acknowledge constraints of a larger piece of land. This is customarily done with a larger plat. Recent examples include The Pointe and Saddle Ridge.

The landowner of most of the undeveloped portions of Section 20 (approx. 300 acres) and the land east of Converse (50+ acres) has proposed deviations from the limitations afforded by incremental approaches. The landowner has described different land uses, a different transportation network and no clearly defined approach to provide any park space. Platting the entire Section 20 and land east of Converse Avenue owned by this landowner is what is recommended for the development and evaluation of systems that will impact the community in perpetuity.

3 || Subdivision Standards - *The division of land meets the purposes, intent, and all applicable standards in Article 4.*

Article 4, Subdivision Regulations provides standards for coordinating development across different areas and over time. It addresses development patterns and includes planning, design, and engineering standards for systems that coordinate development across large areas, including open space, transportation, and utilities. It is most useful to anyone considering dividing land and public officials that review development applications in relation to long-range plans and impacts.

4.2 Community Facilities and Fees

This section of code addresses how the dedication of land occurs and how park fees impact the proposal.

Other than public streets the application does not propose any dedication of land to the City. The understanding of staff is that the stormwater detention pond is not intended to be dedicated to the City but will be privately

maintained.

In the absence of a dedication of park space, park fee credits and reimbursements are not applicable in this case and full Park Fee will be due (4.2.5).

The final plat will require payment of park fees as outlined below (subject to change).

Land Acquisition Fee (PAI)	\$350 x	7 acres	=	\$2,450
Infrastructure Fee (PAI)	\$350 x	7 acres	=	\$2,450
TOTAL DUE W/ PLAT				\$4,900

Enhancement Fees (PEA) for residential development are \$400 per dwelling unit due at the time of issuance of building permits.

4.3 Transportation Networks and Street Designs

As previously discussed the Transportation Network Plan submitted in the application proposes a number of deviations from the master transportation plan. The Transportation Network Plan clearly identifies the intent of the landowner. The Land Owner, Mr. Cole, was extended an invitation to discuss the concerns relating to the transportation network, but has not met with staff.

The deviations in conjunction with the lack of a local street network have put into question what the classification of the roadway being dedicated with the Plat (ie local, collector or arterial). PlanCheyenne contemplates a collector type road to connect from Converse Avenue to Powderhouse, this is based in part on the an existence of local streets as opposed to putting high traffic on fewer large roads as well as the street’s relationship to adjacent land uses which had previously been predominantly residential and small commercial.

The proposed plat and transportation network proposes a “block” that is close to 2 miles around (9,000 feet) and encompasses an area of over 100 acres (the calculation counts Masonway and cut-through of WalMart and Sam’s as southern edge of block), to put 100 acres into context this about half the size of Saddle Ridge.

Numerous deficiencies are already evident in the area which is a direct result of deficient transportation networks. Those deficiencies include high cut through traffic behind K mart and through the parking lot of Sam’s Club. Also significant investments where made into developing Masonway in order to salvage some functionality in the transportation system.

The deviations in the proposed transportation network plan compared to the master transportation plan are substantial and need to be accompanied by an update to the master transportation plan and plat evaluation of the broader area. A more detailed overview of the deviations on the transportation network plan include: (1) Rue Terre terminating in the middle of Section 20 rather than extending to Storey Boulevard. The community and private development have been developing Rue Terre as a collector type street carrying more traffic connecting to Storey Blvd, terminating this road means previous development of this street may now be in excess and future development will need to be reexamined; (2) Degrading and underutilizing the investment of Converse Avenue by precluding a four way access to logically and safety connect to the neighborhoods to the east; (3) Substantial landuse changes are proposed in surrounding areas including single family residential between proposed Scenic Development and Cheyenne Marketplace and no park or open space; (4) offset intersections (5); no local network of streets as previously described.

4.4 Open Space Systems



Figure 3 - Applicants proposed Open Space Exception Credit

The Landowner is pursuing an exception to the open space requirement based on the proximity of a stormwater detention pond east of Converse Avenue, which is across the street from this project. The applicant also describes the proposed 3 acre detention pond in the plat area as open space to be counted as a park as described in Table 4-16. Previous discussion with the Scenic Development Group had anticipated the development of functional open space with the site plan according to City standards and preliminary discussions on improving the functionality of the proposed detention pond to also function as usable park space. Given the plat application and request for open space exceptions it is no longer clear whether Scenic Development intends to develop open space at the site in accordance with applicable zoning requirements.

The detention pond across the street does not qualify for an open space exception. The open space exception is intended for instances when a new development happens to be located near an existing park. The exception being claimed for the existing detention pond is not appropriate since the design and use of the pond meets few if any of the criteria relating to function, accessibility or design. In particular the pond is across from a busy wide relatively high speed street with no legal safe crossing. Furthermore, the pond is not intended for public access.

The City encourages dual use of stormwater features to include park space functionality. Dual use facilities offer an opportunity to maximize the use of land as opposed to creating redundant facilities increasing maintenance costs and reducing developable land. A pond of the size proposed with this development would appear to offer opportunities for dual use which in turn creates the potential of accommodating surrounding developments open space requirements and allowing more area for development. Limited discussions have occurred with this regard and it is staff's understanding that the landowner is not interested in developing this as a functional park space as described in Article 4, Section 4.4.4 ,Table 4-16.

4 || Phasing Amenities, Facilities - *Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned.*

The apartment complex is described as occurring in phases. This is an acceptable and common approach and phasing of this type of development is usually handled during the site plan process. Platting lots tied to phasing is not a recommended process. In a situation where there is intended to be one single owner, keeping one single lot is the simpler and more flexible approach. By breaking up the property into lots we have to assume the potential that one of the lots will be sold which at a minimum would require access easements on the plat to connect to the public street and any shared facilities such as parking or open space. The placement of the lots and easements also has the potential to limit site development options if modifications need to occur after platting and the

easement are set. The phasing of the construction can occur on a single platted lot. In the event that future phases are not realized the property owner still has the option to split the lot off later. It is recommended that the primary lots be one large lot. If multiple lots are pursued, additional evaluation will be needed to address providing adequate access. An approach to this will need to be identified if a final plat is pursued

The detention pond has been described as serving an area beyond this development. The application has not described who will be maintaining and building this facility. This will need to be identified and evaluated if a final plat is pursued.

The construction of the public right of way along the north of the proposal has not been discussed with this application. Also, as mentioned previously the transportation questions associated with this proposal have lead to uncertainty as to how this street will be built (ie width, lanes etc). This is critical and will dictate how development will occur for the entire section 20. This will need to be identified and evaluated if a final plat is pursued.

5 || Studies and Reports - *The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts.*

As previously mentioned, significant deviations are proposed from the Master Transportation Plan submitted by the applicant and a plat encompassing the entirety of the landowner's holding is recommended. An amendment to PlanCheyenne Master Transportation Plan may also be appropriate with this process. Resolving the broader transportation questions prior to delving into the detail of the study is appropriate.

The transportation study submitted in the application (3.1) assumes significant deviations from the land use plan, in particular the study projects single family residential development between the proposed Scenic Development and the Cheyenne Marketplace shopping center. This is a significantly less intense use than what is described in PlanCheyenne. If residential were actually proposed, local road networks would be expected. The development of a local network west of this would appear to be frustrated by this development which does not incorporate any local network. Additional technical comments are addressed in the City Engineer and MPO comments. At this point the transportation study requires a number of technical issues to be addressed for a complete evaluation to occur.

The drainage study and detention pond are planned to accommodate drainage from a large area not included in this plat in excess of 50 acres. Regional detention of this nature is generally encouraged however, the entire area intended to be served by the pond should be included in the plat along with proposed lots and blocks. With any subdivision development multiple systems are evaluated in a balanced fashion to provide some assurance that the development of one system such as stormwater does not unnecessarily frustrate the development of other needed systems such as transportation systems or open space systems. Platting a broader area allows for this evaluation to occur in a logical fashion as opposed to bits and pieces being evaluated at different times.

6 || Zoning - *All proposed lots shall be buildable lots according to the existing or proposed zoning district standards, and result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district. All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance.*

This development is an apartment complex under the Multi-Dwelling Building Large Lot, MD1 (5.1.5d). A large scale apartment complex will also require a conditional use approval by the Board of Adjustment (2.2.4). In general these are buildable lots and can logically meet the setback and coverage requirements. Preliminary site discussions have been occurring with Scenic. The site will be designed around a series of internal access streets (6.2.3 b). The provision of onsite amenities and open spaces will be addressed during the site plan process.

As mentioned previously the creation of lots without a plan to address access and shared facilities is problematic and needs to be addressed with the final plat in order to facilitate the development of buildable lots with proper access.

The conceptual plan provided by the applicant has not been formally reviewed or approved through the site plan process, but appears to be a workable layout in the context of the zoning requirements.

7 || Adjacent Development - *The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property.*

The application has created a high degree of uncertainty relating to the impacts on adjacent properties due to the deviations from adopted landuse and transportation plans and policies which have been relied upon for investment by other landowners and the City. A plat of the entire area is customary to address this sort of proposal.

Written objections have been submitted by another landowner in the area and are an attachment to this staff report.

8 || Health Safety and Welfare - *The application is not harmful to the public health, safety, and welfare.*

The City's zoning codes, regulating plans and policies are adopted by a public process under the umbrella of protecting the health safety and welfare reflecting the community's goals. The previous discussions indicate a number of unresolved questions with this application that have the potential to adversely affect the health safety and welfare as adopted by the community.

REVIEWING AGENCIES AND REVIEWER'S COMMENTS:

Metro Planning Office (MPO): Nancy Olson Requirements & Recommendations 12/20/2012

The Metropolitan Planning Organization recommends that this plat be tabled or denied until the following transportation issues are resolved:

Analysis of the Transportation Impact Study by MPO staff revealed several major flaws and many mathematical errors. Note that the issues listed below are not in any order of significance.

1. The study assumes that only 50% of the area will be built out within 20 years and therefore utilizes only 50% of the built out traffic. Since the TIS is determining the ROW required to handle future traffic, including only half of the future traffic will be limiting build out ROW needs.
2. The employment numbers for TAZ assignments within the entire area has favored very low generation uses, i.e., no other high density apartments and very few restaurants within the area. High acreage TAZs generates low rates. The TAZ assignments need to be agreed upon by all stakeholders.
3. Cut through/background traffic has not been included. TIS uses only traffic from within new development of Section 20.
4. Greater clarity is needed on how the trip assignment numbers were determined.
5. The math in Table 1 is incorrect
6. Unsure of how Table 2 was done
7. Additional errors noted in Table 4
8. Unapproved street network -- This is a significant enough change to PlanCheyenne that the new proposed plan should be adopted by the Governing Body as an amendment or we come to a consensus on the master plan which can be worked into the PlanCheyenne update.
9. Road Classifications do not match LRTP (Long Range Transportation Plan)
10. Signal spacing could be an issue with traffic light at proposed intersections of Converse and Carlson and Converse and Masonway.
11. Section 2.3 assumes that the MPO will study the intersection of Dell Range and Converse through its Dell Range Corridor Plan and therefore the TIS will not evaluate this intersection and improvements needed to it as a result of impacts of this development. Per Article 3.1.4 of the Unified Development Code, it is the responsibility of the applicant to study and evaluate the impact of their proposed development on the transportation network including future peak hour LOS analysis of impacted intersections and provide mitigation alternatives for the same. Once the applicant has done this analysis and provided mitigation recommendations, they will be incorporated by the MPO into its corridor plan.
12. Section 14.0 of the TIS talks about pedestrian and bicycle connections very briefly. Per Article 3.1.4b.12 of the Unified Development Code, the TIS shall provide in sufficient detail the project's proposal to provide connections within and to offsite destinations in close proximity, using the Pedestrian and Bicycle Guidelines in Appendix E

Engineering Department(1):

The Open Space worksheet improperly describes Block 5, Lot 1 of the Storey Boulevard Extension as a Park. It is not a park but rather a detention pond.

The City Engineer's Office recommends that this plat be tabled or denied until the following issues are resolved:

1. The Master Transportation Plan (Plan Cheyenne) shows an east-west collector running through Section 20 to a four legged intersection on Converse. The transportation impact study analyzed a different network where the east-west collector teed into Converse further south. This sets up an undesirable situation whereby all traffic between Section 20 and Buffalo Ridge is forced to turn onto Converse and then off again at another intersection. This requires additional traffic signals, increasing the City's maintenance and operations costs; significantly degrades the performance of the intersections involved, which in turn degrades the performance of Converse as an

arterial; and causes additional delay and crashes.

2. The transportation impact study proposed right-of-way on the east-west collector based on 2030 traffic levels, at which time the transportation impact study predicted the section would be only 50% built out. As right-of-way is forever, requirements need to be based on build-out traffic levels.

3. The transportation impact study only analyzed traffic generated from within Section 20 and did not include any traffic using the proposed roads to travel through the area to other destinations.

4. The transportation impact study generally used low intensity land uses in its prediction of future traffic volumes as the remainder of Section 20 develops. For example, the study predicts that the remainder of TAZ 288 (generally located between this development and Cheyenne Market Place which is where Kohl's and other stores are situated) would develop as a mixture of single family housing with a small amount of commercial development, generating approximately 4300 vehicles per day at build out. The area (less this development) is about 42 acres. In rough terms, this could allow two additional developments to be built; each developed to the same scale as the adjacent Kohl's development, and could generate a total of 14,600 vehicles per day. This intensity of land use is supported by the Land Use Plan in Plan Cheyenne.

If the remainder of the Section develops as predicted in the transportation impact study, this will not arise as an issue. If, however, the Section develops to an intensity closer to what is allowed under Plan Cheyenne, the transportation impact study may significantly understate the impacts of development of this area.

5. Taken in whole, what is proposed in the transportation impact study is significantly different from Plan Cheyenne. To further develop this Section as envisioned in the transportation impact study, Plan Cheyenne should be amended (through the appropriate public process) either as part of the currently ongoing Plan Cheyenne update or as a separate amendment.

Engineering Department (2):

1. A Transportation Worksheet to determine TIA/TIS requirements was provided as required (ref. Article 3, section 3.1.1.c., UDC). A Transportation Impact Study (TIS), dated December 4, 2012, by Sustainable Traffic Solutions has been received and reviewed for this project. Comments on the TIS are as follows:
 - a. The proposed Carlson Road shall be a minor arterial with a minimum of 100 feet of right-of-way with a back of curb to back of curb width of 52 to 60 feet wide.
 - b. The minimum spacing between intersections on minor arterials, from other accesses and from the corner is 660 feet, 330 feet and 330 feet, respectively.
 - c. Provide a discussion on existing traffic on the future roadway network prior to adding the future land use traffic.
 - d. Provide a site plan that is scaleable.
 - e. The number of units in phase one will require more than one access point for emergency response.
 - f. Provide a copy of the proposed land use plan that was utilized to assume the uses of the undeveloped portion of section 20.
 - g. Although the MPO Office is studying the area, any improvements necessary to make the Scenic Development a viable project will need to be incorporated in the Scenic Development Project. This may include, but is not all inclusive of capacity improvements for both intersections and roadway widening.
 - h. Although the Phasing has not been determined, all offsite improvements will be required with Phase 1.
 - i. The average growth rate of 1.25% was provided by the MPO and is representative of the average growth in the Cheyenne area. The growth rate in an undeveloped area such as for this proposed project may be substantially different.

- j. The width of right-of-way that would need to be reserved should be based on full buildout. The 50% reduction factor should not be utilized in the determination of Carlson Street Classification, right-of-way requirements and roadway section.
 - k. The projected volume on Carlson Street in 2030 is expected to range between 5,270 and 5,940. The number appears to have been derived from only that area in Section 20 and for the projected land use. There is no discussion regarding trips that are entering the area as well as through movements bypassing the adjacent land uses, i.e., Carlson Street constructed without the development would serve the through movement and intra area travel.
 - l. The continued approval of Development Actions preceding an approved Master Transportation Planning Study will only build on the success or failure of the existing roadway system. We need to take steps to prevent past mistakes from recurring.
 - m. Additional comments may be forthcoming with each subsequent submittals.
2. All new streets shall align with any existing or proposed streets on adjacent property and shall continue and extend arterial, collector, and local streets within the proposed subdivision externally to the parcel boundary as identified in the adopted Transportation Master Plan and the overall Transportation Network Plan (ref. article 4, Section 4.3.3.f., UDC). No connection meeting this requirement is shown on the Preliminary Plat. Developments with over fifty (50) dwelling units should have at least 3 connections or routes to an existing arterial or collector street and one additional connection or route for every increment of fifty (50) dwelling units.
 3. A driveway approach for a local design street type should be flared (ref. Article 4, Section 4.3.4, UDC). Design standards for intersections of public streets can be utilized where high speed or frequent vehicle access is expected (generally access points with anticipated ADT more than 500 vehicles). *(comment not applicable to platting, will be addressed as needed in the site plan process)*
 4. The Sight Distance Triangle at controlled intersections and access driveways shall maintain adequate, unobstructed sight distance in both directions from all accesses (ref. Article 4, Section 4.3.5.c., UDC). This triangular space is to be kept free from all obstructions to vision, including plant materials and vegetation, between the heights of 2.5 and 12 feet above the street grades. *(comment not applicable to platting, will be addressed as needed in the site plan process)*
 5. Curb ramps meeting ADA Accessibility Standards shall provide a direct, non-diverted approach along the block, into the pedestrian crossing (ref. Article 4, Section 4.3.5.e, UDC). *(comment not applicable to platting, will be addressed as needed in the site plan process)*
 6. Primary driveways into mixed use, commercial and employment centers shall be of sufficient length to allow vehicles to enter and not be impacted from on-site conflicts in which traffic backs out onto the street system (ref. Article 4, Section 4.3.6., UDC). The access design, location, width and driveway length shall meet with the approval of the City Engineer. *(comment not applicable to platting, will be addressed as needed in the site plan process)*
 7. Lot access width shall be limited based upon the standards listed in Table 4-13 in the UDC. The width for two-way Commercial or Mixed-use driveways is 24 to 36 feet (ref. Article 4, Section 4.3.6.c., UDC). *(comment not applicable to platting, will be addressed as needed in the site plan process)*
 8. Intersection along streets and lot access points shall be separated from other streets and access points along a single block face and from the street edge of an intersection as specified in the UDC for each specific street design type (ref. Article 4, Section 4.3.6.d, UDC). The minimum intersection spacing for minor arterial streets is 660 feet from another street intersection and the minimum access separation from the property corner to the edge of driveway or another access is 330 feet.
 9. *The builder and/or the developer are responsible for the construction of sidewalks (ref. Article 4, Section 4.5.2.b, UDC). (comment not applicable to platting, will be addressed as needed in the site plan process)*
 10. *All mandatory signage and striping (ref. Article 4, Section 4.5.2.d, UDC) are to be shown in the project civil improvement drawings in conformity with the City of Cheyenne Standards and the Manual on Uniform Traffic Control Devices (MUTCD). (comment not applicable to platting, will be addressed as needed in the site plan process)*
 11. *All situations where a sidewalk or pedestrian facility intersects with an internal vehicle circulation shall be treated by one of the following manners: (1) the material, layout and grade of the pedestrian access shall be continuous as it crosses the grade of the driveway; or (2) a crosswalk differentiated from vehicle*

surfaces by different materials, texture or color, or a speed table (ref. Article 6, Section 6.2.3.a, UDC). (comment not applicable to platting, will be addressed as needed in the site plan process).

12. The number, location, dimension, and signing of accessible parking stalls shall be in accordance with the current ADA Standards for Accessible Design (ref. Article 6, Section 6.2.4.d, UDC). (comment not applicable to platting, will be addressed as needed in the site plan process)
13. Stall layout width and length and aisle width for 90 degree parking is 9.0 feet, 18.5 feet and 26.0 feet respectively. Stall layout width and length and aisle width for angle parking is as specified in Article 6 of the UDC (ref. Article 6, Section 6.2.8.b, UDC). (comment not applicable to platting, will be addressed as needed in the site plan process)
14. As part of the project, the applicant shall provide in sufficient detail the project's proposal to provide pedestrian and bicycle connections within the site to the local offsite pedestrian and bicycle destinations in close proximity to the project (Appendix E, UDC). This assessment shall describe the directness of the route to and from various parts of the project, the continuity of the pedestrian and bicycle system to reach these destinations and the design elements to assure safe access.

Fire Department: Chris Balcom Requirements & Recommendations 12/11/2012

We will need to see hydrant placement as the utilities for the plat become available. *(site level consideration)*

City Surveyor:

1. Boundary data and legal description as provided in the DEDICATION appears in order.
2. However, the first course, the last course and the C3 data of the legal description do not properly appear on the map. This correction is required prior to approval.
3. How are Lots 3 and 4 to be accessed? This is required to be identified. *(addressed in Staff report, lots should be created based on functionality in the long term as opposed to initial project phasing)*

Laramie County Assessor:

1. The 'et als' need to be spelled out and sign the Dedication. As of Dec. 10, 2012, in addition to Frank M. Cole, the owners are Edward George Cole, Lester Lee Cole, Ann M. Cole, Frank M. Cole Jr., Christy Kay Cole, Kevin Louis Cole, Casey Lee Cole and Caroline Kate Tietjen. (will need to be address on a Final Plat)
Is the property of the proposed plat to be annexed?

LCSD #1: Chris Hout Requirements & Recommendations 12/12/2012

This development site falls within the East Triad -- student's home attendance boundaries are East High School, Carey Junior High School and Anderson Elementary Schools.

The current attendance for these schools is as follows:

Anderson Elementary - at capacity with no space available.

Carey Junior High - below capacity with space available in both grades.

East High -- at or above capacity with no space available.

Optimum (formerly Bresnan): Kurt Quinlivan Requirements & Recommendations 12/10/2012

Optimum will require utility easement in any location the developer would like cable television lines to be ran and pedestals to be placed.

Parks and Recreation Admin: Teresa Moore Requirements & Recommendations 12/17/2012

Show pedestrian connectivity between this site and commercial area to the south. *(Although this apartment complex is next to a major commercial center the applicant has not proposed any means to connect to the commercial center other than the over ½ mile route via Converse and Masonway)*

Transit:

This is a natural area for expansion to our current Transit system, as the area is currently served nearby with bus stops pullouts and or shelters at or nearby at Converse and Mason way, 615 Storey, Old town and Powderhouse,

Powderhouse and Melton & McCue/and Powderhouse and Prairie Ave. We would like to have the opportunity to discuss traffic flows and future services in conjunction with our 2013 Transit Development Planning process. *(there have not been any discussions with the applicant relating to transit opportunities)*

Board of Public Utilities

On July 14, 2003 the Cole Family (Landowners) enter into a Memorandum of Agreement with the City of Cheyenne and the Cheyenne Board of Public Utilities. Contract #4475 Master Agreement for Storey Blvd.–Converse Ave. Extension, Section 17 & 20, T14N R66W, 6th. PM, Laramie County, Wyoming for the construction of the Storey Blvd. and Converse Ave. Extension. In Paragraph 14 of this Agreement, it speaks about reimbursement for the water and sewer utilities that were constructed along Storey Blvd. and the Converse Ave. Paragraph 14 also states that Landowners agreed to reimburse the City for the portion of the water and sewer main improvements at the time of and in conjunction with development action by the Landowners. The portion of water and sewer facilities improvement to be reimbursed at the time of development will be based on a reimbursement schedule in this document. The Developers / Landowners of the Scenic Subdivision will be required to pay the portion of water and sewer facilities improvement to be reimbursed at the time of development and will also be based on a reimbursement schedule in this document.

All reimbursements for the water and sewer will be based on a maximum size of eight inches.

Please see Table - 2 Converse Ave. for the Sewer main reimbursement along the property being developed at Scenic Subdivision

- Station 203+20 thru Station 208+75
555' feet of 8" Sanitary Sewer Main at 100% Reimbursement at \$18.90 LF
 $555' \times \$18.90 \text{ LF} = \$10,489.50 / 2 = \mathbf{\$5,244.75}$
- Station 203+75, 205+75 & 207+25
Three Manholes at 50% Reimbursement at \$1,461.20 each (50%= \$730.60)
 $3 \times \$730.60 = \mathbf{\$2,191.80}$
Sewer Main Reimbursement = \$5,244.75+ \$2,191.80 = \$7,436.40

Please see Table - 4 Converse Ave. for the Water main reimbursement along the property being developed at Scenic Subdivision.

- Station 203+20 thru Station 208+75
555' feet of 8' Water main at 100% Reimbursement at \$20.30 LF
 $555' \times \$20.30 \text{ LF} = \$11,266.50 / 2 = \mathbf{\$5,633.25}$
Water Main Reimbursement = \$5,633.25

The total Sewer and Water Reimbursement to the Cheyenne Board of Public Utilities for this development Scenic Subdivision is $\$7,436.55 + \$5,633.25 = \$13,069.80 \times (\text{CPI-U}) \text{ Index}$.

The unit price based on the Consumers Price Index. Annual inflation will be base on the Consumers Price Index and all Urban Consumers (CPI-U) Index. The base month CPI-U index in August 2003 was 184.60, and in October 2012, it was 231.31 = **1.2531**

The total Sewer and Water Reimbursement to the Cheyenne Board of Public Utilities for this development Scenic Subdivision is:

$\text{Sewer } \$7,436.55 + \text{Water } \$5,633.25 = \$13,069.80 \times 1.2531(\text{CPI}) = \mathbf{\$16,377.66}$

Owner/Developer of the Scenic Subdivision is responsible for verifying the remaining available sewer capacity of the existing sewer system in the area to serve this project. There is no water or sewer available to serve this development. The developer will be required to construct a looped water main to serve this development. The property Owner/developer shall be required to extend the water and sanitary sewer utilities from their current location to the farthest point (or points) of the property being developed.

- At station 208+75, Converse Ave. at the 12" tie across main. The 12" water valve must remain in the closed position, due to the PRV Area east of Converse Ave.
- The Water main loop and Sanitary Sewer must make their tie into the Board of Public Utilities system at locations behind the Wal-Mart Store.

A Wyoming Professional Engineer will need to submit proposed site plans with all utilities and overall projected design, plans and profiles to the Board of Public Utilities. After BOPU's review and signature of approval, the design engineer will need to send the plans to the (D.E.Q.) for approval and a permit to construct. When the D.E.Q. permit is issued, City's Engineer's Office and Cheyenne Fire Department have reviewed and signatures of approval are on the cover sheet. Then the Agent/Owner may employ a licensed contractor to install the utilities, and request a preconstruction meeting with all parties involved prior to construction.

All water and sanitary sewer utilities need to be designed and constructed in accordance with the latest City of Cheyenne and Board of Public Utilities Construction Specifications Standards and Standard Drawings and the latest Rules & Regulations for Establishing Policies & Design Criteria of the Board of Public Utilities Cheyenne, Wyoming.

Reviewing Agencies with No Comment: City GIS Mapping, City Drainage Engineer

Reviewing Agencies Not Responding: Sanitation, Police, Environment Health, City GIS Mapping, CLFP, County Clerk

Encl: Preliminary Plat Map
Photo Exhibit/Aerial
Murray Properties Memorandum

cc: Owner
Agent/Applicant
File

DEC 27 2012

RECEIVED

MURRAY PROPERTIES

Edward F. Murray, III - President
1616 Warren Ave., Ste. 21
Cheyenne, Wyoming 82001

TELEPHONE (307) 634-8364
CELL PHONE (307) 421-2741

E-Mail: ed@murraywyo.com
FAX NUMBER (307) 634-2413

MEMORANDUM

**HAND DELIVERED
DECEMBER 27, 2012**

TO: Brandon Cammarata, AICP
Director | Planning & Development | City of Cheyenne

FROM: Ed Murray, Manager
Harmony Center LLC

RE: STATEMENT OF OBJECTIONS
CASE NUMBER: A-12-00002
Scenic Development

Dear Mr. Cammarata:

Please accept this letter as my Statement Of Objections to the road network plan (see "Exhibit D" attached hereto – hereinafter referred to as the "Cole road network plan") which has been submitted by Frank Cole, et. al. in conjunction with his application(s) for the "Scenic Development" project referred to above. [NOTE: The above case number "A-12-00002" refers to a proposed application for annexation which, at this point, may have been combined with preliminary plat and/or subdivision applications. In any event, please accept and file this Statement of Objections with any newly created files and/or case numbers which encompass and/or incorporate the road network plan depicted in the attached "Exhibit D"].

We object to the proposed Cole road network plan submitted by the applicant for the following reasons:

1) The Cole proposed road network plan does not comply with the master transportation plan as provided for in PlanCheyenne. Attached hereto, marked as "Master Plan" is a copy of the enlarged relevant portion of PlanCheyenne which depicts Rue Terre connecting to Storey Blvd as a main north south collector and/or arterial street through the center of section 20 exactly half-way between Powderhouse (to the west) and Converse (to the east). Additionally, the Master Plan depicts an east-west collector and/or arterial connecting at Converse with a four-way intersection. A comparison of the attached "Exhibit D" (the "Cole road network plan") and the attached "Master Plan" reflects the very substantive deviations including, but not limited to the failure of Rue Terre to extend north and connect to Storey Blvd and the lack of a four-way intersection connecting to Converse.

We hereby incorporate by reference those portions of the “Annexation and Staff Report” dated October 18th, 2012, wherein it explains, among other things, the purpose and importance of transportation and land use planning. The summary of said report states, for example, as follows:

The plan helps to establish predictable expectations for both landowners and for the City in terms of anticipating where improvements to the transportation system will be necessary in order to efficiently and safely serve the community. ...

... The transportation and land use plans also establish reasonable expectations for urban land uses and future transportation improvement by surrounding landowners.

We also hereby incorporate by reference those portions of the “Reviewing Agency and Reviewers Comments” as they relate to the Cole road network plan especially the comment #3 from City Engineering and comments #1 through #6 from Traffic Engineering and comments #1 and #2 from MPO.

2) The Cole proposed road network plan would prevent our community and taxpaying citizens from maximizing its return on investment. Our City paid dearly to obtain the Storey Blvd and Converse right-of-way (Note: Based upon information and belief, the City paid approximately five million dollars nearly nine years ago just for the real estate alone which became the rights-of-way for Storey Blvd and Converse. We have requested the precise purchase information in these regards, but, that information was not available as of the submission of this letter). The inability to extend a collector and/or arterial such as Rue Terre north to connect to Storey Blvd and the lack of a four-way intersection connecting to Converse deprives our City and our taxpayers of the opportunity to realize the best and highest return on its significant investment. The master plan contemplates a transportation network that most efficiently and safely serves the community and surrounding area while the Cole proposed road network plan does not. (Note: Upon information and belief, at the time of the acquisition of said rights-of-way, it was contemplated and planned – as evidenced by various maps – that the preferred road network and access point(s) to said rights-of-way would encompass that as is now incorporated in the master transportation plan as provided for in PlanCheyenne.

3) The Cole proposed road network plan would prevent surrounding (and surrounded) landowners from utilizing their properties consistent with the future land uses as provided for in PlanCheyenne. Attached hereto, marked as “Murray Property” is a map depicting the 24 acres +/- owned by a Murray business entity which is surrounded by the Cole property. The future land use contemplated by the PlanCheyenne master plan for such “Murray Property” is mixed-use with commercial emphasis (see pink and red cross-hatch) for the south half of the Murray Property (in what would be the northwest intersection of a road network as depicted in the master plan) and mixed-use with residential emphasis (see tan and pink cross-hatch) for the north half of the Murray Property. Obviously, the ability to develop and utilize said Murray Property consistent with said future land uses is necessarily directly related and contingent upon a road network consistent with the master transportation plan as provided for in

PlanCheyenne. To the contrary, upon information and belief, Mr. Cole has, in his proposed road network plan, substantially deviated from the master transportation plan as provided for in PlanCheyenne for the purpose (whether intentionally or not) of, among other things, depriving surrounding (and surrounded) landowners from the opportunity to utilize their properties to their highest and best use all, ultimately, to his own benefit but to the great and extensive detriment of the adjacent landowners as well as to the City and to the entire community.

4) The acceptance of the Cole proposed road network plan by the City, upon information and belief, may rise to the level of an unconstitutional “taking” of property without due process (assuming an opportunity for notice and hearing but assuming no remuneration) and, thereby, leave the City legally exposed for the loss in value of the property adversely affected by the decision. In this matter, for example, an approved Cole road network would substantially and irreparably alter our ability to develop and utilize said “Murray Property” as previously contemplated pursuant to, and in reliance upon, the master transportation plan and future land use plan as provided for in PlanCheyenne. Arguably, there would be a very substantial and measurable decline in the value of said property that was directly related to the decision in that it (the property) could no longer be fully utilized for the purpose(s) for which it was intended. It has been brought to my attention, for example, that a “taking” may occur when the value of a property is substantially diminished due to some governmental action even absent an actual seizing of the same. Accordingly, while this comment is no way intended to suggest anything other than good faith open and thorough discussion of the matter at hand, it would be remiss not to address the fact that, indeed, the stakes are very high for us and our use (and value) of our property in question.

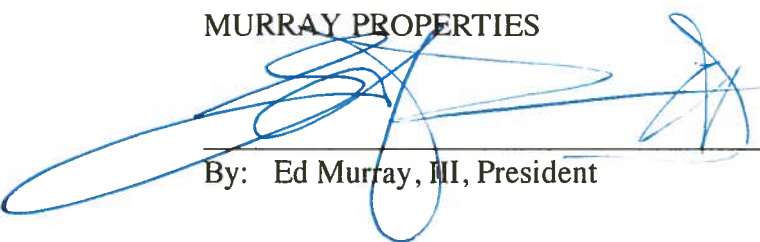
In conclusion, I must also go on the record to confirm that my attempts to meet with Mr. Cole to discuss possible solutions to this matter (as encouraged by Mayor Kaysen during two previous public hearings) have been rejected by Mr. Cole and he has, unfortunately, informed me in not uncertain terms that he will not talk with me. Accordingly, while I sincerely desire to attempt to work out some sort of reasonable solution to this matter, we must continue to advocate for what is right and just - - not only in regards to our own interests, but, in the interests of all surrounding property owners as well as of our entire community.

Finally, we hereby reserve the right to continue to supplement and expand the scope of our objections as this matter continues to evolve.

Thank you for your consideration of our “Statement of Objections” and please feel free to contact me if you have any questions or concerns.

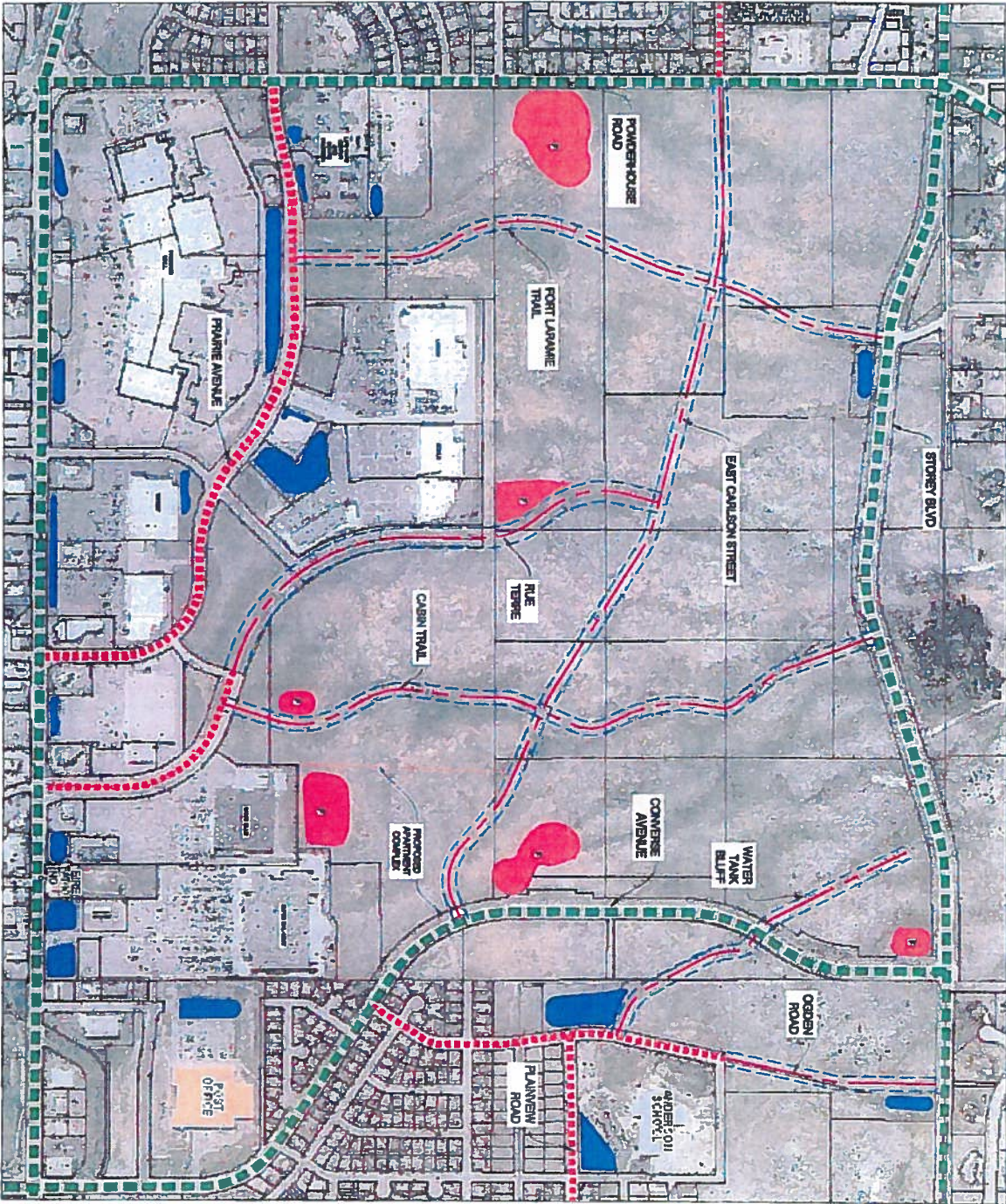
Very Truly Yours,

MURRAY PROPERTIES



By: Ed Murray, III, President

Enclosures As Noted



- LEGEND**
- COLLECTOR ROAD (EXISTING) ----
 - ARTERIAL ROAD (EXISTING) ----
 - COLLECTOR ROAD (FUTURE) ----
 - STORMWATER DETENTION AREA (EXISTING) ●
 - STORMWATER DETENTION AREA (FUTURE) ●

BUILDING & DEVELOPMENT OFFICE
SEP 25 2012
RECEIVED
BKC

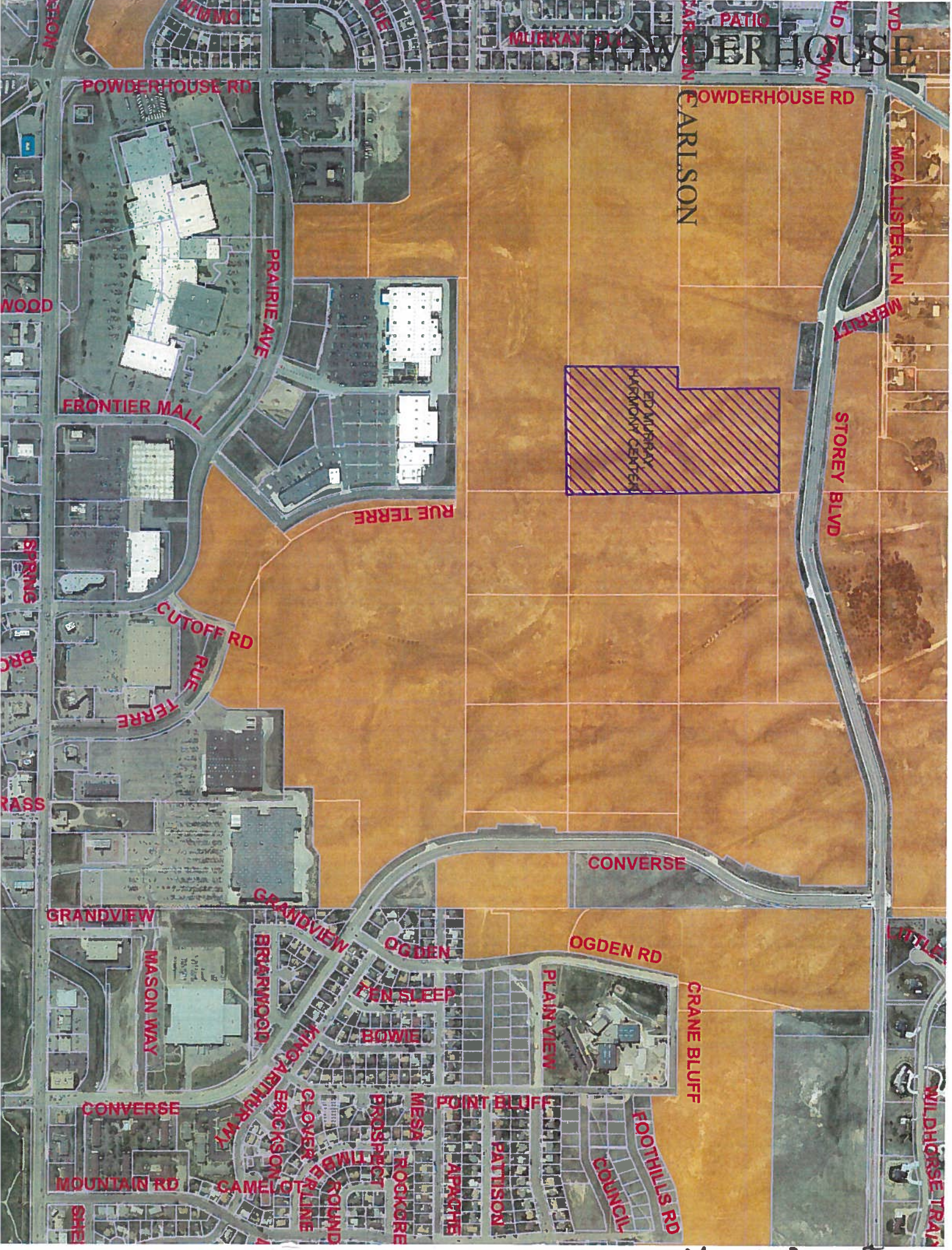


EXHIBIT D (vi) ROAD NETWORK FOR SECTION 20

APRIL 9, 2012

"Exhibit D"





POWDERHOUSE

ED MURRAY
HARMONY CENTER

Mountain Desert

ARTICLE 4 SUBDIVISION REGULATIONS

4.3 TRANSPORTATION NETWORKS AND STREET DESIGNS

4.3 Transportation Networks and Street Designs

- 4.3.1 Intent
- 4.3.2 Transportation Network Plan
- 4.3.3 Block Size and Connectivity Requirements
- 4.3.4 Street Design Types
- 4.3.5 Intersection Designs
- 4.3.6 Block and Lot Access
- 4.3.7 Access Management for High-volume / High-speed Roadways

4.3.1 Intent

The Intent of this Section is to:

- a. Prioritize planning street networks and the design of street types as an important and substantial civic asset that establishes permanent patterns and the character of the public realm of the City.
- b. Provide for efficient and safe movement and access along all public ways through a variety of modes of transportation, including automobiles, bicycles, pedestrians, and potentially transit.
- c. Coordinate the findings of any required Transportation Impact Study or Transportation Impact Assessment with the development and division of land.
- d. Complement regional transportation systems with local networks that support multiple and alternative routes for daily trips, do not overly burden any single roadway, and include logical connections to existing, planned, or potential future streets.
- e. Coordinate available street designs with the appropriate transportation networks and development patterns.
- f. Plan street networks that allow the design of streets to transition along their length to best support anticipated and adjacent land uses and development patterns.
- g. Develop balanced street designs ("complete streets") for regional and local routes that accommodate all potential users of the street and rights-of-way, so that the interests of a single mode of transportation do not unnecessarily compromise other modes of transportation.

4.3.2 Transportation Network Plan

- a. **General Requirements.** All divisions of land shall include a transportation network plan that shall:

1. Comply with long range transportation plan and the master street plan, and provide a local street network for connections with these plans.
2. Comply with the findings of any Transportation Impact Study or Transportation Impact Assessment conducted for the area or required by the development, particularly incorporating recommended mitigation alternatives.
3. Provide connectivity at the local street level sufficient to meet the goals, policies and principles of the Comprehensive Plan and Transportation Plan.
4. Coordinate with planned land uses within the subdivision, and integrate with existing or planned and anticipated land uses beyond the subdivision.
5. Coordinate with other geographical, topographical and utility constraints.

Applications featuring small parcels or platting within previously developed area shall relate any proposed street and access points to the surrounding existing transportation network according to these standards.

- b. **Functional Classification.** The functional classification of a street refers to the general function in the overall transportation system and addresses primarily the continuity of the street and the traffic capacity that it is designed for when considered in context of the entire transportation system. Functional classification does not necessarily dictate the cross section design or design on any one segment of the street. A number of different cross sections may be appropriate for a single functional classification depending on the extent of the surrounding transportation network, the planned and anticipated adjacent land uses, and the speeds desired for that particular segment of the street.

Table 4-5 provides planning parameters for the Transportation Network Plan based on the functional classification and the role of the street in the entire street network, including areas beyond the development site. Specific cross sections that may be applicable to segments of streets should be based on existing or planned land uses fronting on the segment and are provided in Section 4.3.4 Street Design Types.

- c. **Private Street Standards.** All roads and streets platted and constructed within new subdivisions shall be public. In some extraordinary cases where there is no public right-of-way, and no feasible means of access to public right-of-

Addendum #1 – Scenic Development Preliminary Plat and Zone Change

Submitted January 18, 2013

The addendum is a letter and additional information from agent requesting Council review of the Scenic Development Preliminary Plat and Zone change which was recommended for denial by Planning Commission on January 7, 2013. Council Agenda submittal 1/23/13



**Steil
Surveying
Services, LLC**
Registered Land Surveyors

RECEIVED

JAN 10 2013
4:30 pm Jaz

January 11, 2013

Steil Surveying Services on behalf of:

Scenic Development, Inc.
14572 S 790 W Unit A
Bluffdale, UT 84065
(801) 253-1237

Cheyenne City Council
2101 O'Neil Ave, Room 115
Cheyenne, WY 82001
(307) 637-6357

InRe: "Appeal" of a Preliminary Plat [P-12-00009] *Scenic Subdivision*, on a portion of previously unplatted land situated in a portion of the East half of the East half (E½E½) of Section 20, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (Annexation in process). (Approximately 20.87 acres)

To whom it may concern:

The proposed subdivision comprises approximately 20.87 acres located west of Converse Avenue and north of Wal-Mart to allow for a Multi-Family Residential Development (approximately 336 dwelling units) following a Zoning Map Amendment and other approvals and entitlements. The proposal includes dedication of right-of-way, intersecting with Converse Boulevard, accessing three (3) Residential lots, and an Open Space/Stormwater Detention lot.

Pursuant to Sub-Section 2.1.2.c6(b) of the City of Cheyenne Unified Development Code (UDC), and following the recommendation for denial at the regular meeting of the City of Cheyenne Planning Commission on January 7, 2012; this letter is submitted as an "appeal" to the Council based on the information formally submitted herein and in conjunction with supplemental materials provided at the time of application.

The concerns raised at Planning Commission fall into three categories and can be interpreted and summarized as follows:

1) Drainage and Stormwater Detention

The concern was raised regarding the design of the Detention Area and the relationship of the detention area for the project to the overall drainage basin/stormwater collection area which is being included in the Drainage Study. While it is not unusual to consider regional detention, a copy of the Drainage Study is available upon request and the **Drainage Engineer has provided a narrative discussing the proposed use and design of Lot 4.** (enclosed as Exhibit "A")

2) Project and Plat Concerns

In accordance with staff comments, the major concerns of the Planning Commission regarding compliance with the provisions of the UDC are two-fold:

- a) There is insufficient access to internal (landlocked) lots and to adjacent retail centers; specifically a lack of vehicle access to Lot 2 and no provision of pedestrian connection(s) to the retail developments (Wal-Mart and Sam's Club) to the south. **The developer is willing to work with the Development Office to determine the best way to provide both pedestrian and vehicle access as described and will contact Wal-Mart to discuss allowing a gate in their northerly fence and the potential to coordinate direct pedestrian access from our development to their property.** It is anticipated that this will be more constructive in conjunction with the Site Plan Review process and have indicated planned access and utility corridors for the above-described areas on attached Exhibit 'B'.
- b) There was a lack of clarity in the submittal documents as to the provisions for open space and compliance with the provisions of UDC Sub-Section 4.4.3 *Required Open Space*. Although it is anticipated that Lot 4 will be designed and maintained to meet or exceed the requirements of Sub-Section 4.4.3(b3) and be considered as open space, the applicant encourages the Planning and Development Departments to consider open space provisions for multi-family projects such as this at the time of site plan.

Given the developers previous experience developing and managing similar developments across the region, we have found that for a project such as this, considering open space, recreation and outdoor amenities at the time of site plan allows for a more accurate analysis and a more controlled, diverse and distributed open space system which will ultimately better serve the residents of the development.

Based on our discussions with the Planning and Development Offices and our *Conceptual Site Plan* submitted, the **Planning Services Director and Development Director have agreed that consideration of open space provisions will be deferred until the Site Plan Review period**; Council can be assured that the open space provided for our development will meet or exceed the provisions of Chapter 4.4 of the UDC.

3) Transportation Network

At the time of submittal, the *Transportation Network Plan* that was shown had been developed over many years and in conjunction with several generations of City Engineers. While it is primarily based on geographical, topographical and utility constraints of the area in question, it is also based on contractual obligations between landowners in Section 20 and the City of Cheyenne regarding the Converse and Storey Boulevard Extensions.

As apparent on the attached map (Exhibit "C"), **The proposed plat and subsequent development DO NOT interfere with, preclude or negate development of the City of Cheyenne Long-range Transportation and Master Street Plan(s) as conceived.**

The proposed plat and residential development preserve the overall connectivity and circulation of the conceptual and actual transportation networks in the area and the proposed roadway has appropriate spacing both from existing and planned intersections on Converse.

Regarding the *Transportation Impact Analysis (TIA)*, the City Engineer and MPO staff noted several deficiencies. These concerns will be addressed and the TIA amended as Conditions of Approval. **A Final Plat will be presented to the governing body to ensure that these transportation issues are resolved prior to final approvals.**

With this "appeal" the developer encourages the Council to look objectively at the cost-benefit analysis of a project such as this; and assure you that Scenic Development prides ourselves on providing a quality product and enhancing the quality of life for the residents of our developments. The developer will be maintaining ownership of the development after it is completed and are here to stay.

Given the benefits of the proposed development to the City of Cheyenne, the enclosed supplemental information and the future necessity of additional public and governing body review, this 'appeal' request is respectfully submitted and we encourage you to acknowledge the Preliminary Plat with conditions as you see fit; allowing us to move forward to Public Services Committee and one step closer to providing much needed housing and jobs to the City of Cheyenne.

Please contact us with any questions or concerns.

Thank you,



Casey L. Palma | Development Director
STEIL SURVEYING SERVICES, LLC
LAND | CONSTRUCTION | ALTA | SITE PLANNING

cc: Mayor Rick Kaysen
City Attorney
City Clerk
Development Office
Owner(s): c/o Cole, Frank M ET AL
Applicant: Scenic Development, Inc.

encl: Estimated approval timeline(s)
Exhibit 'A' - Stormwater Detention and Open Space Information
Exhibit 'B' - Proposed Access Provisions
Exhibit 'C' - Revised Transportation Network Plan

For reference, please find listed below the applications and procedures (with actual or anticipated completion dates as applicable) which are required prior to site development pursuant to the UDC:

Annexation: Resolution Adopted November 13, 2012 by the Governing Body; Ordinance being held for concurrence with plat approvals.

Zone Change: Recommended for denial on January 7, 2013 by the Planning Commission due to reference to Preliminary Plat. Scheduled for City Council on January 14, 2013 (postponed to run concurrent with Plat)

Preliminary Plat: Recommended for denial on January 7, 2013 by the Planning Commission.

Pending City Council decision on the above-noted Preliminary Plat:

Preliminary Plat: Public Services Committee: February 5, 2013 [PUBLIC HEARING]
& Zone Change City Council (2nd Reading): February 11, 2013 [PUBLIC HEARING]

Zone Change: Public Services Committee: February 20, 2013 [PUBLIC HEARING]
City Council (3rd Reading): February 25, 2013 [PUBLIC HEARING]

Final Plat: Planning Commission: April 1, 2013 [PUBLIC HEARING]
City Council: April 8, 2013 [PUBLIC HEARING]
Public Services Committee: April 16, 2013 [PUBLIC HEARING]
City Council (2nd Reading): April 26, 2013 [PUBLIC HEARING]

*Additionally, Upon completion of these entitlements,
the following Administrative and Board approvals are required:*

Site Plan approval process (Administrative) Estimate >45 days

Board of Adjustment Approval for Multi-Family Use [PUBLIC HEARING] Estimate >45 days



January 16, 2013

Governing Body
City of Cheyenne
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

RE: Regional Detention Pond – Scenic Development

Dear Sir or Madam:

Based on the review comments from the above listed project, we are providing a summary of the benefits to allowing regional detention verses a more piecemeal approach to controlling runoff:

The benefits of a larger regional detention facility are as follows:

- **Efficiency:** Runoff can be better controlled from a large area through a single defined outlet. Larger regional detention facilities are sized for major storms and will have most of the area free from frequent inundation. This allows for shared use for other purposes such as the placement of recreational facilities. Stand-alone detention facilities that are designed independent of each other can actually increase downstream flooding issues. This was a significant finding of many recent reports looking at drainages in the front-range region of Colorado. This also prompted a major change in how detention is looked at in the Urban Drainage and Flood Control District in the greater Denver area. The complexity of designing a piecemeal drainage network to work in unison with other facilities can be difficult if not systems are not designed together.
- **Cost effective:** This is in terms of both development and maintenance costs. Minimizing land reserved for detention ponds promotes the highest and best use for other lands thus increasing the overall value and the tax base. One detention facility is much easier to maintain than several. Multiple facilities use up more land and increase the cost to develop and maintain. In the case of the Scenic Subdivision, the proposed detention facility will account for the 21 acres of that project but has the ability to service 72 acres of the total basin area. The amount of detention storage allocated to the Scenic Subdivision is approximately 22% of the total storage volume to be utilized in the facility.
- **Safety:** Stormwater detention facilities require excess capacity called free-board in the top area of the detention pond. In large detention facilities, the free-board volume can be a measurable buffer on the order of 50% to 75% of the design volume (as designed with the Scenic Subdivision) for containment of major storm inflows. This adds a large factor of safety into the

t: 307.634.9064 / f: 307.778.8010 / info@benchmarkengineers.com / BenchMarkEngineers.com
1920 Thomas Avenue, Suite 620 / Cheyenne, Wyoming 82001

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design that would not be as measurable with smaller facilities. At this time, Dry Creek has both capacity (i.e. flow rate) and volumetric problems downstream of this location. Each year new development and redevelopment add additional runoff which accumulates behind roadway and railway embankments increasing the flood hazard in the eastern portion of Dry Creek. Regional detention facilities provide over-detention in the interim term prior to full development. This benefit would not be available with piecemeal stormwater detention.

- Long-term Planning: Regional detention areas designed at the beginning of development within a basin can be sited in areas where the topography is best suited to be the most efficient (i.e. basin low-points and near outlets). The proposed Scenic Subdivision detention facility is a continuation of facilities constructed with the Wal-Mart Supercenter project as part of a long-term drainage plan by the property owners of this area. Planning with this development allows for construction of storm sewer mains to be continued for a broad area of service upstream of the Scenic Development project. Storm sewers can increase the lifespan of street sections by reducing the erosive effects associated with flowing water.
- Water Quality: Wide based regional detention facilities (such as the facility in question) have the ability to work over a range of flow rates that will not fully saturate the base soils. Small detention ponds frequently saturate under continuous flow from the required automatic sprinkler systems from new developments. The initial estimates suggest the regional detention facility could take long duration inflows of 50-100 gallons per minute and not produce outflow. This increases water quality by not transferring concentrated pollutants in low flows such as fertilizers, spills, and suspended solids into downstream drainages. This also allows these facilities to utilize excess water from the upstream areas that would otherwise be problematic to conventional landscaping (i.e. bluegrass) in the base of smaller facilities.
- Open Space: Larger open area allows for construction of trails and other access features that would be much more difficult to construct in more confined areas. The proposed detention facility with the Scenic Subdivision included provisions for frequent pedestrian access (routes less than 20H:1V) into the base of the facility along with milder slide slopes (i.e. 5H:1V and 6H:1V). Larger open areas carry aesthetic value which is usually contrary to the view of smaller detention facilities. Small detention facilities have long been viewed as 'holes in the ground' with no value as open space.

We hope you will take these benefits into consideration when reviewing project proposals and why large stormwater detention facilities have benefits over smaller piecemeal systems.

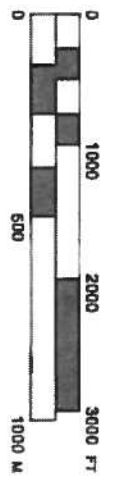
Respectfully,



Kelly W. Hafner, P.E.

(b)

EXHIBIT C



LEGEND

- Existing Major Arterial Street
- Existing Minor Arterial Street
- Existing Collector Street
- Existing Local Street
- Future 'Plancheyenne' Collector
- Potential Future Street Alignment
- Proposed New Street
- Project Site
- Existing Park/Greenway
- Proposed Open Space/Detention
- Proposed Vehicle Access Point

REVISED: JANUARY 2013

TRANSPORTATION NETWORK PLAN FOR SCENIC DEVELOPMENT

PREPARED BY:



STEEL SURVEYING SERVICES, LLC
1102 W. 19TH ST. P.O. BOX 2073
PH (307) 634-7273 CHEYENNE, WY 82003

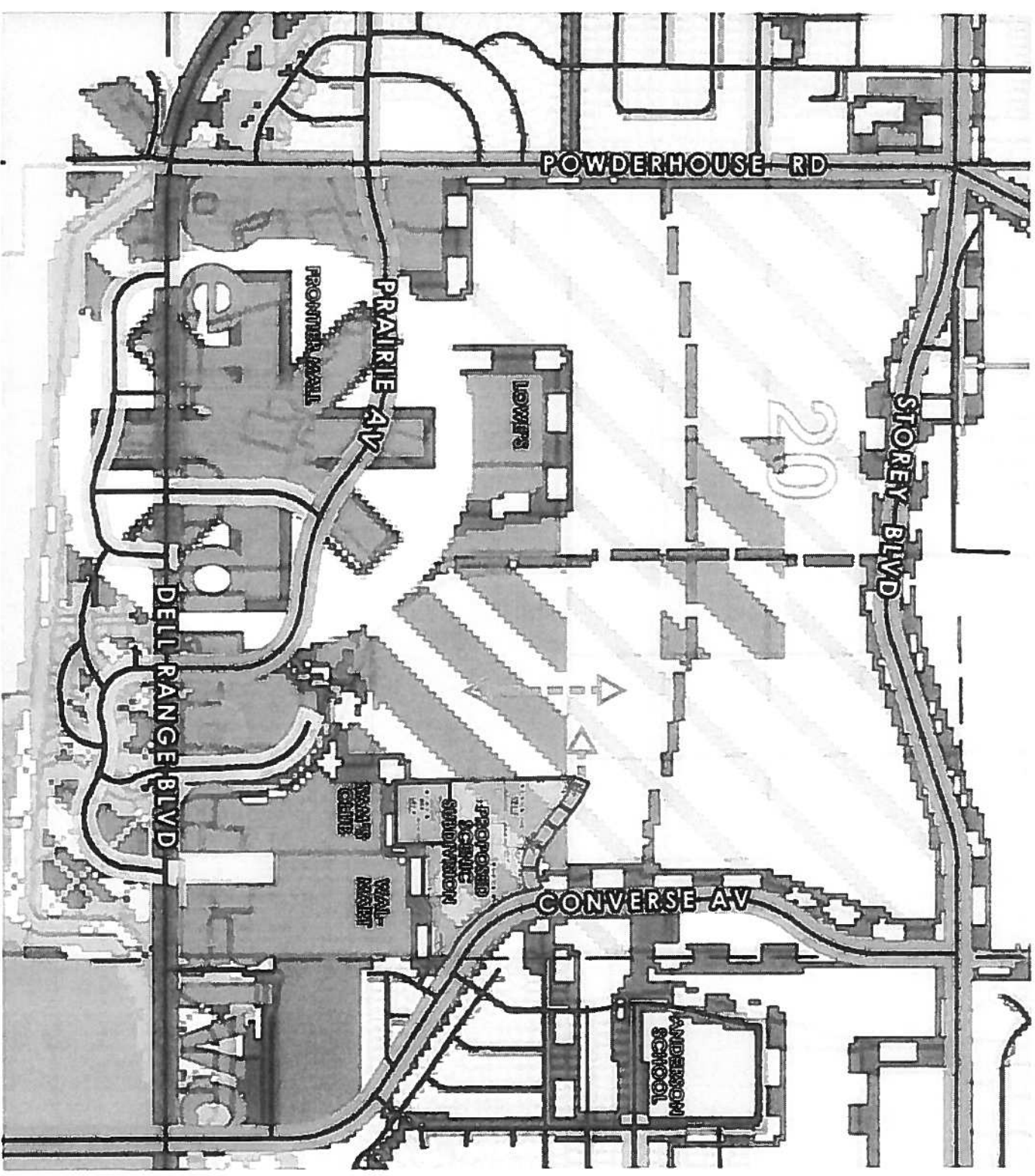
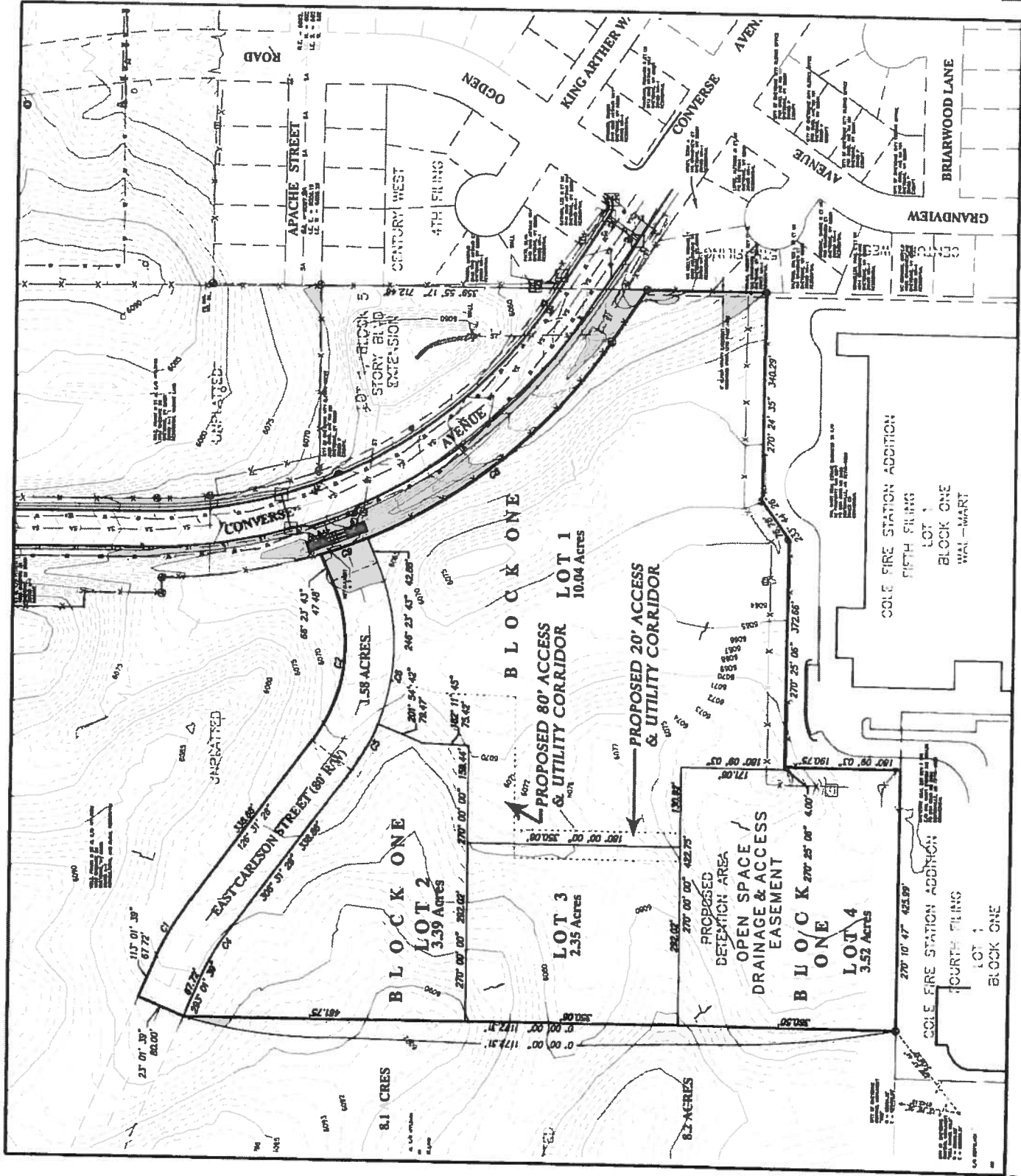


EXHIBIT "B" - SCENIC DEVELOPMENT



SCENIC DEVELOPMENT ACCESS PROVISIONS



STEEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
REGISTERED IN THE STATE OF ARIZONA

OWNERS:

EDLE, LARRY & LORRAINE
1845 OCEAN BLVD
OCEANOGRAPHY, ARIZONA
THE FRAME & LEO ATTORNEYS
OCEANOGRAPHY, ARIZONA

ENGINEER:

ARTHUR, LARRY & LORRAINE
1845 OCEAN BLVD
OCEANOGRAPHY, ARIZONA
THE FRAME & LEO ATTORNEYS
OCEANOGRAPHY, ARIZONA

DEVELOPER:

ARTHUR, LARRY & LORRAINE
1845 OCEAN BLVD
OCEANOGRAPHY, ARIZONA
THE FRAME & LEO ATTORNEYS
OCEANOGRAPHY, ARIZONA

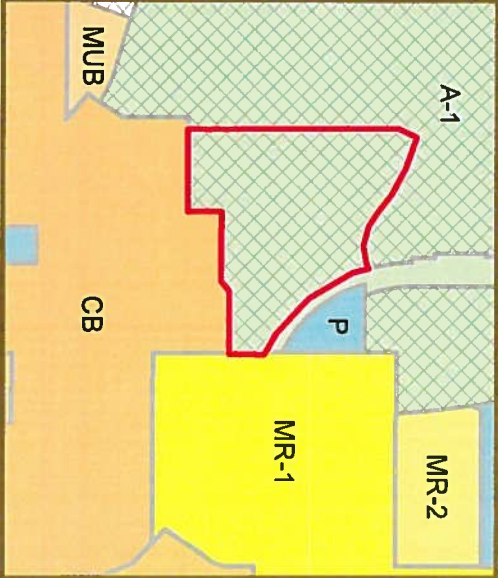
SURVEYOR:

ARTHUR, LARRY & LORRAINE
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OCEANOGRAPHY, ARIZONA
THE FRAME & LEO ATTORNEYS
OCEANOGRAPHY, ARIZONA

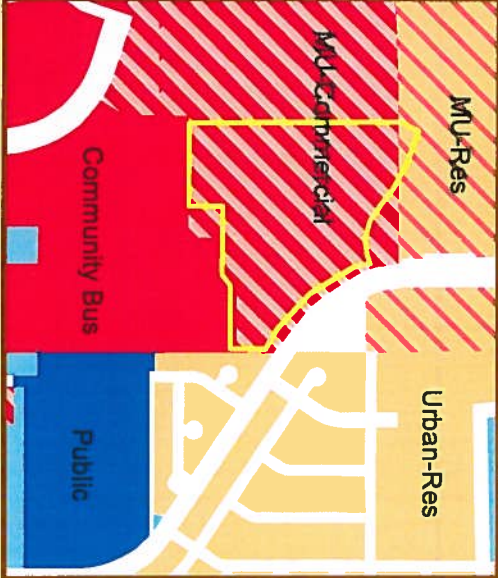
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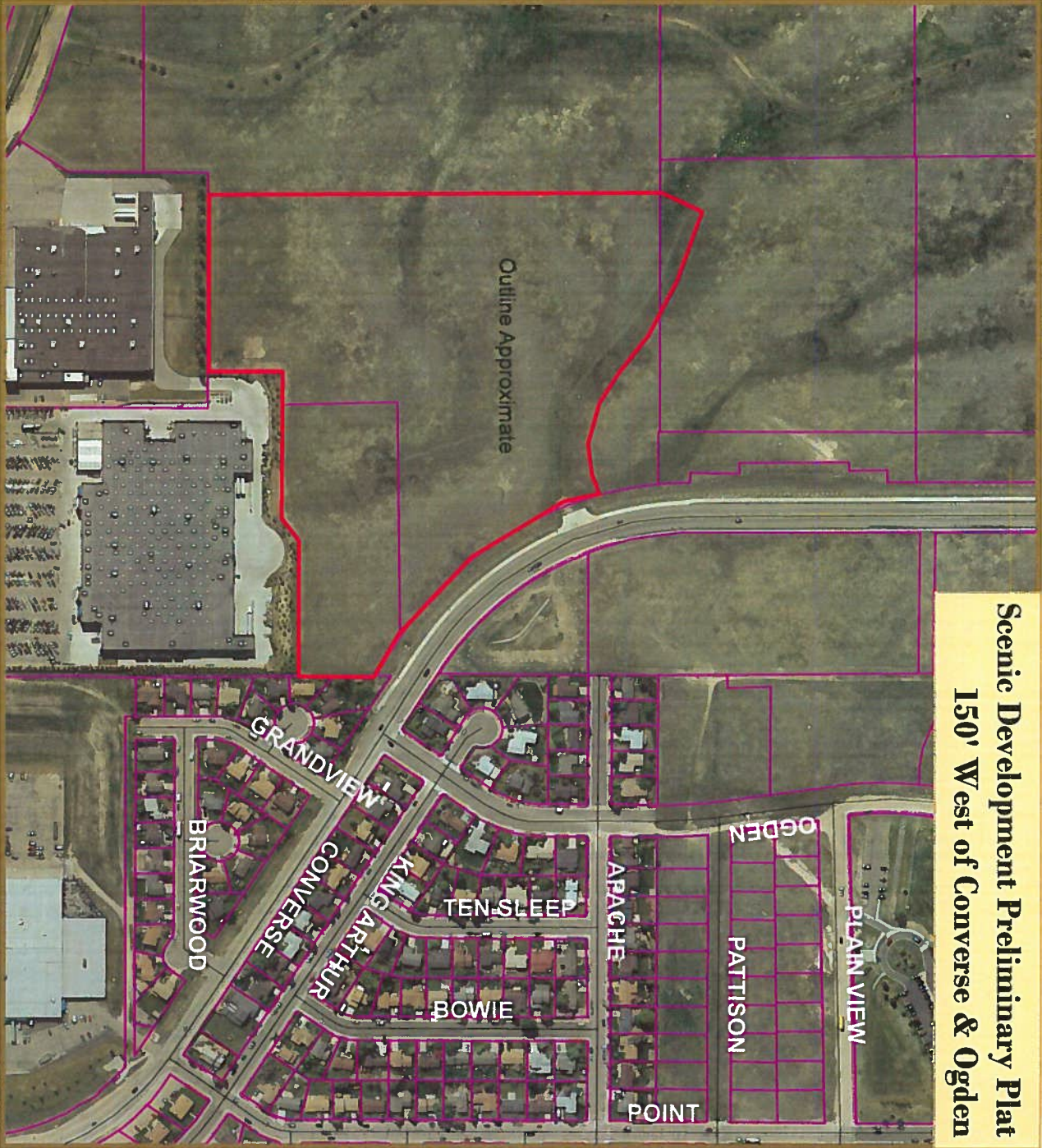
Zone Districts



Future Land Use Map



Scenic Development Preliminary Plat
150' West of Converse & Ogden



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS involves the sovereign and governmental immunity in allowing access to or use of this data

2010 Aerial

1 in = 400 ft



Ownership

PORTION OF E1/2E1/2 SECTION 20



